

Master Services Agreement

SAMPLE DOCUMENT - fictional parties, created for testing a vector database

This Master Services Agreement is entered into on **1 January 2026** (the "Effective Date") between **Bluepeak Software Solutions Pvt. Ltd.**, 42 Lakeview Road, Bengaluru 560001 (the "Supplier"), and **Greenfield Retail Ltd.**, 7 Market Street, Pune 411001 (the "Customer").

1. Definitions

"Agreement" means this Master Services Agreement, including all Statements of Work and schedules.

"Services" means the software development, maintenance and support services described in a Statement of Work.

"Confidential Information" means any non-public business, technical or financial information disclosed by one party to the other.

"Statement of Work" or "SOW" means a document signed by both parties describing specific Services, deliverables, timelines and fees.

2. Scope of Services

2.1 Bluepeak Software Solutions Pvt. Ltd. (the "Supplier") will provide the Services described in each SOW according to the specifications and timelines agreed by both parties.

2.2 The Supplier will maintain appropriate standards of quality and use suitably skilled personnel to deliver the Services.

2.3 Greenfield Retail Ltd. (the "Customer") will provide the Supplier with all information, access and approvals reasonably required to perform the Services.

2.4 If there is a conflict between this Agreement and an SOW, this Agreement prevails unless the SOW expressly states otherwise.

3. Term

3.1 This Agreement starts on the Effective Date and continues for an initial term of two (2) years.

3.2 The Agreement may be renewed for further periods of one (1) year if both parties agree in writing before the current term expires.

4. Fees and Payment

4.1 The Customer will pay the fees set out in each SOW. Fees are exclusive of applicable taxes.

4.2 The Supplier will invoice the Customer monthly in arrears for Services performed during the previous month.

4.3 All undisputed invoices must be paid within forty-five (45) days of receipt.

4.4 If the Customer disputes an invoice, it must notify the Supplier in writing within fifteen (15) days and explain the reason. Undisputed portions must still be paid on time.

4.5 Late payments carry interest at one percent (1%) per month on the overdue amount.

5. Service Levels

5.1 The Supplier will make production support available 99.5% of the time, measured monthly, excluding scheduled maintenance.

5.2 Critical (Priority 1) incidents must receive a response within one (1) hour and a fix or workaround within eight (8) hours.

5.3 If the Supplier misses the availability target in any month, the Customer is entitled to a service credit of five percent (5%) of that month's support fees.

6. Confidentiality

6.1 Each party must keep the other party's Confidential Information secret and must not disclose it to any third party without prior written permission.

6.2 Confidential Information may only be shared with employees and subcontractors who need it to perform this Agreement and who are bound by similar obligations.

6.3 Confidential Information does not include information that is publicly available, already known to the receiving party, or independently developed.

6.4 These obligations continue for three (3) years after this Agreement ends.

7. Data Protection and Security

7.1 The Supplier will process Customer personal data only on the Customer's documented instructions and in line with applicable data protection law.

7.2 The Supplier will maintain reasonable technical and organisational security measures, including encryption of data in transit and at rest.

7.3 The Supplier must notify the Customer within forty-eight (48) hours of becoming aware of any personal data breach.

8. Intellectual Property

8.1 Each party keeps ownership of the intellectual property it owned before this Agreement.

8.2 Once the Customer has paid in full, all deliverables created specifically for the Customer under an SOW become the Customer's property.

8.3 The Supplier grants the Customer a non-exclusive, perpetual licence to use any Supplier tools embedded in the deliverables.

9. Subcontracting

9.1 The Supplier may use subcontractors only with the Customer's prior written approval.

9.2 The Supplier remains fully responsible for the acts and omissions of its subcontractors.

10. Warranties

10.1 The Supplier warrants that the Services will be performed with reasonable skill and care.

10.2 The Supplier will correct any material defect in a deliverable reported within ninety (90) days of acceptance at no additional cost.

11. Limitation of Liability

11.1 Neither party is liable for indirect or consequential losses, including loss of profit or loss of data.

11.2 Each party's total liability under this Agreement is capped at the total fees paid in the twelve (12) months before the claim.

11.3 The cap does not apply to breaches of confidentiality, data protection obligations, or liability that cannot be limited by law.

12. Termination

12.1 Either party may terminate this Agreement for convenience by giving thirty (30) days' written notice.

12.2 Either party may terminate immediately if the other commits a material breach and fails to fix it within fifteen (15) days of written notice.

12.3 On termination, the Customer must pay for all Services performed up to the termination date.

12.4 The Supplier must return or securely delete all Customer Confidential Information within thirty (30) days of termination.

13. Force Majeure

13.1 Neither party is liable for delays caused by events beyond its reasonable control, such as natural disasters, war, or government action.

13.2 If a force majeure event lasts more than sixty (60) days, either party may terminate the affected SOW by written notice.

14. Dispute Resolution and Governing Law

14.1 The parties will first try to resolve any dispute through good-faith discussion between senior managers within thirty (30) days.

14.2 If the dispute is not resolved, it will be referred to arbitration by a single arbitrator.

14.3 This Agreement is governed by the laws of India, and the courts of Bengaluru have exclusive jurisdiction.

15. General

15.1 Neither party may assign this Agreement without the other party's prior written consent.

15.2 Any change to this Agreement must be in writing and signed by authorised representatives of both parties.

15.3 Notices must be sent in writing to the addresses set out in the signature block below.

Signatures

For the Supplier

Bluepeak Software Solutions Pvt. Ltd.

Name: Asha Menon

Title: Director

Date: 1 January 2026

For the Customer

Greenfield Retail Ltd.

Name: Daniel Joseph

Title: Head of Procurement

Date: 1 January 2026